

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR APRIL 30, 2026, AT 8:30 A.M.**

15. S-CV-0056838 SKORODUMOVA, DARIIA v. NYACK

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Plaintiff Dariia Skorodumova's Motion for Reconsideration of January 7, 2026, Order

Preliminary Matters

The court notes plaintiff's memorandum exceeds the 15 page limit imposed by California Rules of Court, rule 3.1113, subdivision (d) and does not include a table of contents as required by California Rules of Court, rule 3.1113, subdivision (f). The court admonishes plaintiff to adhere to the applicable California Rules of Court in subsequent pleadings.

Ruling on Motion

A motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law. . ." (Code Civ. Proc., § 1008, subd. (a).) Moreover, the motion must include an affidavit that details "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (*Ibid.*) The motion must also present a satisfactory explanation as to why the evidence was not presented at an earlier time. (Code Civ. Proc., § 1008; *Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.) The moving party bears the burden of showing that the information supporting reconsideration is such that the moving party could not, with reasonable diligence, have discovered or produced it earlier. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212–13.)

Plaintiff's motion is procedurally and substantively deficient.

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First, plaintiff has not included an affidavit with their motion that details “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008, subd. (a).)

Second, plaintiff has not presented any new or different facts, circumstances, or law that warrants reconsideration of the court’s order.

Accordingly, plaintiff’s motion is denied.

16. S-CV-0056872 DOWLING, TERESA v. DMV

If oral argument is requested, it shall be heard on **May 14, 2026, at 8:30 a.m. in Department 3.**

Petitioner’s Petition for Writ of Mandate

Petitioner’s petition for writ of mandate is continued to **June 18, 2026, at 8:30 a.m. in Department 3.** Petitioner shall serve the writ on respondent in the same manner as a summons in a civil action and file proof of service on respondent on or before **May 26, 2026.** (Code Civ. Proc., §§ 1088.5, 1094.5, 1096.)